

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Drew Murphy	Team: Squad #10	CCRB Case #: 202301615	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/13/2023 5:17 AM, Monday, 02/13/2023 5:35 AM	Location of Incident: 222nd Street and Boston Road; 47th Precinct stationhouse	18 Mo. SOL 8/13/2024	Precinct: 47		
Date/Time CV Reported Tue, 02/14/2023 6:09 AM	CV Reported At: Mayor's Office	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 02/24/2023 9:08 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Hillary Alves	03213	972506	047 PCT
2. PO Olanrewaju Olatunji	05965	966748	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jerome Camacho	05625	968309	047 PCT
2. SGT Michael Cassesi	03450	934593	047 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Olanrewaju Olatunji	Abuse: At East 222nd Street and Boston Road in the Bronx, Police Officer Olanrewaju Olatunji improperly used his body-worn camera.	A . Substantiated
B . PO Olanrewaju Olatunji	Abuse: At East 222nd Street and Boston Road in the Bronx, Police Officer Olanrewaju Olatunji searched the vehicle in which § 87(2)(b) was an occupant.	B . Substantiated
C . PO Olanrewaju Olatunji	Abuse: At the 47th Precinct stationhouse, Police Officer Olanrewaju Olatunji did not obtain medical treatment for § 87(2)(b)	C . Substantiated
D . PO Hillary Alves	Abuse: At the 47th Precinct stationhouse, Police Officer Hillary Alves did not obtain medical treatment for § 87(2)(b)	D . Substantiated
E . PO Olanrewaju Olatunji	Abuse: At the 47th Precinct stationhouse, Police Officer Olanrewaju Olatunji issued an unlawful summons to § 87(2)(b)	E . Substantiated

Case Summary

On February 14, 2023, § 87(2)(b) filed the following complaint with the Mayor's Office. On February 24, 2023, this complaint was received at the CCRB.

On February 13, 2023, at approximately 5:17pm, in the vicinity of Boston Road and East 222nd Street in the Bronx, Police Officer Olanrewaju Olatunji and Police Officer Hillary Alves, both of the 47th Precinct, pulled § 87(2)(b) over for disobeying a pavement stop line. Sergeant Michael Cassesi and Police Officer Jerome Camacho, both of the 47th Precinct, also arrived as backup. PO Olatunji approached § 87(2)(b) driver's side without first activating his body-worn camera (**Allegation A: Abuse of Authority—Improper use of body-worn camera, Substantiated**). PO Olatunji asked § 87(2)(b) for his license and registration a few times and each time § 87(2)(b) refused to comply. § 87(2)(b) stepped out of the car at PO Olatunji's direction. PO Olatunji entered § 87(2)(b) car to grab § 87(2)(b) wallet (**Allegation B: Abuse of Authority—Vehicle Search, Substantiated**). When § 87(2)(b) refused again to provide his ID to PO Olatunji, he was placed in handcuffs and brought back to the precinct to be identified.

At approximately 5:35am, in the vicinity of the 47th Precinct stationhouse, as PO Olatunji and PO Alves placed § 87(2)(b) in a holding cell, § 87(2)(b) told the officers that his shoulder was in pain and that he would like to receive medical attention. PO Olatunji and PO Alves did not honor this request (**Allegations C and D—Abuse of Authority, Refusal to Obtain Medical Treatment, Substantiated**). PO Olatunji issued a criminal summons for disorderly conduct to § 87(2)(b) and then released him (**Allegation E: Abuse of Authority—Unlawful Summons, Substantiated**).

The investigation obtained BWC footage from PO Olatunji, PO Alves, Sgt. Cassesi, and PO Camacho, the relevant portions of which will be discussed below (**BR 03-22**).

PO Olatunji issued a moving violation for disobeying traffic pavement markers, in violation of VTL 1110(A), as well as a criminal summons for disorderly conduct to § 87(2)(b) (**BR 01-02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At East 222nd Street and Boston Road in the Bronx, Police Officer Olanrewaju Olatunji improperly used his body-worn camera.

In PO Olatunji's first excerpt of BWC (**BR 09-10**), the footage begins with PO Olatunji standing next to § 87(2)(b) driver's side door. There is no audio for the first 59 seconds of the footage. At 0:58, PO Olatunji moves his right arm up and appears to tap his camera. The audio turns on as § 87(2)(b) asks all of the members of service if their body-worn cameras are on.

PO Alves' first excerpt of BWC (**BR 03-04**) begins while she is still in her police vehicle prior to pulling over § 87(2)(b). At the 2:25 timestamp, § 87(2)(b) steps out of his car and complies with PO Olatunji's direction to stand behind his car. At the 2:52 timestamp, § 87(2)(b) stands behind his car. He asks PO Olatunji if his BWC is on. PO Olatunji responds, "Yes it's on," then looks down and presses the BWC. The BWC's red light turns on as § 87(2)(b) asks the rest of the members of service on scene if their cameras are all turned on. Sgt. Cassesi and PO Camacho's BWC is generally consistent with PO Alves' BWC (**BR 05-08**).

PO Olatunji stated (**BR 25**) that when he pulled § 87(2)(b) car over to the right side of the road, he tapped his BWC to turn it on. When he was standing next to § 87(2)(b) driver's side door he looked down and realized his BWC had not turned on, so he tapped it again and confirmed that it turned on. The investigation showed PO Olatunji the excerpt of his and PO Alves' BWC which were described above. After reviewing the footage, PO Olatunji stated that he had an independent recollection of turning his BWC on at the beginning of the stop while § 87(2)(b) was still in his car, however, after reviewing the footage he stated that he was mistaken, and he did not definitively turn his BWC on until § 87(2)(b) asked him if his camera was on after he had already stepped out of his car.

Patrol Guide procedure 212-123 states that is mandatory for uniformed members of service

to activate BWC prior to engaging in vehicle stops (**BR 27**).

It was undisputed that PO Olatunji did not successfully activate his BWC prior to conducting a traffic stop of § 87(2)(b) and activated it only after § 87(2)(b) had already exited his car. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be **Substantiated**.

Allegation (B) Abuse of Authority: Police Officer Olanrewaju Olatunji searched the vehicle in which § 87(2)(b) was an occupant.

In PO Olatunji's first excerpt of BWC (**BR 09-10**) at the 1:00 timestamp, § 87(2)(b) standing behind his car, tells PO Olatunji, "First I have not been identified yet, you still didn't tell me why I was pulled over. Number two, I don't consent to no searches." PO Olatunji responds, "I'm not searching your car. Where is your license?" § 87(2)(b) says, "I can get it myself. I can retrieve it, it's right there on the passenger seat." PO Olatunji says, "I'm not letting you back in your car. In the passenger seat?" § 87(2)(b) tells him it is in his wallet in the passenger seat. At the 1:24 timestamp, PO Olatunji walks to the open driver's side door of § 87(2)(b) car. PO Olatunji leans in through the door with his flashlight extended and grabs the wallet off the passenger seat. He steps out of the car and hands the wallet to § 87(2)(b). At the 2:00 timestamp, after PO Olatunji has given the wallet back to § 87(2)(b) says, "If I refuse to give you my license, where will we go from there?" PO Olatunji says, "Well then we have to put you in cuffs." As PO Olatunji says this, § 87(2)(b) says, "I refuse. Alright, put me in cuffs."

PO Alves' first excerpt of BWC (**BR 03-04**) is generally consistent with that of PO Olatunji. At the 3:18 timestamp, PO Olatunji walks toward § 87(2)(b) front driver's side door. As he does so, § 87(2)(b) says, "I do not consent to you going in my wallet, or even, in my possession of my belongings." PO Olatunji does not respond to this as his upper body leans into the open driver's side door of the car. Sgt. Cassesi and PO Camacho's BWC is generally consistent with those of PO Alves and PO Olatunji (**BR 05-08**).

§ 87(2)(b) stated (**BR 23-24**) that he was pulled over on the right side of E. 222nd Street for driving through a paved stop line. PO Olatunji approached the driver's side of his car and requested his driver's license. § 87(2)(b) told him that he wanted to know why he was pulled over before he would provide his license. § 87(2)(b) went back and forth about four times on this point with PO Olatunji, before the latter requested § 87(2)(b) step out of his car. § 87(2)(b) complied with this direction. When he got out of the car, PO Olatunji asked him to turn around. § 87(2)(b) turned around and PO Olatunji placed handcuffs on his wrist. § 87(2)(b) never stated that PO Olatunji, nor any other police officer, entered his car during the incident. § 87(2)(b) interview was generally consistent with his intake statement (**BR 38**).

PO Olatunji stated (**BR 25**) that upon approaching the driver's side of § 87(2)(b) car, he asked § 87(2)(b) for his license and registration three or four times. Each time PO Olatunji asked, § 87(2)(b) told PO Olatunji that he wanted to know why he was stopped first. PO Olatunji asked § 87(2)(b) to step out of his car, which he did. PO Olatunji asked again for § 87(2)(b) license. § 87(2)(b) told PO Olatunji that his license was in the car. PO Olatunji could not recall specifically where with certitude, but he believed that § 87(2)(b) specified that the wallet was on the passenger seat. § 87(2)(b) told PO Olatunji that he did not want him to search his car. PO Olatunji walked over to the car and leaned through the driver's side door and picked up the wallet. PO Olatunji did not consider § 87(2)(b) telling him not to search his car, because PO Olatunji did not plan to search his car, he planned to grab the wallet so that § 87(2)(b) could give him his license. PO Olatunji did not recall opening any containers or glove compartments. The wallet was in plain view upon entering the car. He grabbed the wallet without searching any other section of the car. He gave the wallet back to § 87(2)(b) and then asked § 87(2)(b) to hand him his license. § 87(2)(b) refused to hand him his license, so

PO Olatunji placed him into handcuffs and removed him to the precinct so that he could identify him and write him a summons at the precinct.

PO Alves stated (BR 26) that she had no independent recollection of this interaction with § 87(2)(b). PO Alves viewed her body-worn camera footage and told the investigation that her statement was entirely based on what she saw in the footage. She approached § 87(2)(b) passenger side door, while PO Olatunji approached the driver's side and asked § 87(2)(b) for his license. § 87(2)(b) rejected the request multiple times. PO Olatunji asked § 87(2)(b) to get out of the car, and the latter complied. Once out of the car, PO Olatunji asked § 87(2)(b) for his license again. § 87(2)(b) said his license was in his wallet, which was in the car. § 87(2)(b) started to walk toward the car, but PO Olatunji told him to stop and said he would get it. PO Alves did not know whether § 87(2)(b) gave PO Olatunji permission to go into his car. She also did not know whether PO Olatunji had to enter the car to retrieve the wallet.

The Event Chronology for Job# § 87(2)(b) (BR 28), noted that the job began as a traffic safety stop (75Z) at approximately 5:10am, and was closed at approximately 5:28am, as 92C, which meant, crime arrest.

Vehicle Report# § 87(2)(b) (BR 29), prepared by PO Olatunji, noted that § 87(2)(b) vehicle was searched, and that consent was not given.

According to People v. Hernandez, 238 A.D.2d 131 (BR 30), an officer breaching the plane of the car doorway with his body or arm to reach inside the vehicle constitutes a search of a vehicle. There must be probable cause that a vehicle contains contraband, weapons, or evidence of a crime to justify a warrantless search of a vehicle.

NYPD Patrol Guide 209-09 (BR 31) states that officers, when issuing a summons returnable to the Traffic Violations Bureau or Criminal Court, are to "In traffic cases, examine driver's license, vehicle registration, and insurance identification card for vehicles registered in New York State" and are to "remove violator to command for investigation if doubt concerning identity exists."

It is undisputed that § 87(2)(b) drove through a paved stop line and was subsequently pulled over. PO Olatunji requested that § 87(2)(b) provide his license multiple times and § 87(2)(b) told PO Olatunji that he would not provide his license until he was told the reason for the vehicle stop. After § 87(2)(b) stepped outside of his car, PO Olatunji told § 87(2)(b) that he was going to retrieve his license from the car. § 87(2)(b) made it clear that he did not wish PO Olatunji to search his vehicle. PO Olatunji entered the car and picked up the wallet from plain view. When PO Olatunji returned the wallet to § 87(2)(b) still refused to provide his ID and opted to instead be taken to the 47th Precinct.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation B** be **Substantiated**.

Allegation (C) Abuse of Authority: At the 47th Precinct stationhouse, Police Officer Olanrewaju Olatunji did not obtain medical treatment for § 87(2)(b)

Allegation (D) Abuse of Authority: At the 47th Precinct stationhouse, Police Officer Hillary Alves did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated (BR 23-24) that as he walked to the police vehicle, his shoulder dislocated and then popped back into place. This occurred relatively often due to a past injury. When § 87(2)(b) was in the back of the police vehicle, he told PO Olatunji that his shoulder had dislocated and that he would like medical assistance. PO Olatunji told him that he could get

medical treatment at the stationhouse. At the 47th Precinct, PO Olatunji placed § 87(2)(b) into a holding cell. § 87(2)(b) told PO Olatunji again that he would like to have medical attention for his shoulder. While still in the cell, § 87(2)(b) told PO Alves that he would like medical attention. PO Alves told him that she would call for medical attention on his behalf, but she never returned to the cell. PO Olatunji returned again to § 87(2)(b) cell. Again, § 87(2)(b) asked PO Olatunji to call medical professionals for him. PO Olatunji told § 87(2)(b) that he would be released shortly, and he could either be released, or he could wait in the cell longer for an ambulance to come. § 87(2)(b) suggested that he call an ambulance, release him as they had planned, and allow him to wait in the precinct lobby for the ambulance. PO Olatunji responded that this was not an option.

PO Olatunji stated (BR 25) that when he and PO Alves placed § 87(2)(b) into the back-holding cell at the 47th Precinct, § 87(2)(b) mentioned that he would like medical attention for some shoulder pain he was experiencing. PO Olatunji did not hear § 87(2)(b) request for medical assistance at the time. After PO Olatunji left the holding cell area, PO Alves told PO Olatunji that she heard § 87(2)(b) request medical attention. After the incident concluded, PO Olatunji reviewed his BWC and saw that § 87(2)(b) did indeed ask for medical attention. PO Olatunji walked over to § 87(2)(b) holding cell. § 87(2)(b) lifted his shoulder and rotated it. PO Olatunji asked § 87(2)(b) if he had surgery on his shoulder, which § 87(2)(b) denied. PO Olatunji asked if § 87(2)(b) was injured, and § 87(2)(b) told him he was not. PO Olatunji told him he was likely experiencing discomfort because he was in handcuffs. PO Olatunji told § 87(2)(b) that he was only being held until the summons was prepared, and then he would be released. PO Olatunji told him, if he would like, PO Olatunji could call him an ambulance and § 87(2)(b) could leave in an ambulance. § 87(2)(b) did not respond to this suggestion at all. The conversation shifted away from the shoulder, and they discussed the traffic stop. § 87(2)(b) never requested an ambulance before he was released.

In PO Olatunji's BWC (BR 09-10), at the 16:40 timestamp, as § 87(2)(b) walks toward the holding cell he says, "Let me speak to your sergeant. I need medical attention, my shoulder hurts." PO Olatunji replies, "OK." § 87(2)(b) steps into the cell and as PO Alves locks the door, § 87(2)(b) repeats, "Like I said I need medical attention for my shoulder." PO Olatunji responds, "Alright."

In PO Alves BWC (BR 03-04), at the 18:48 timestamp, as PO Alves locks the door of the holding cell, § 87(2)(b) says, "Like I said, I need medical attention for my shoulder." The volume of the keys jingling and the lock turning obscure § 87(2)(b) voice faintly to the background.

PO Alves stated (BR 26) that she had no independent recollection of this incident and was basing her statement entirely upon what she saw in her BWC footage. After § 87(2)(b) was placed into handcuffs and sat in the back of the police vehicle, § 87(2)(b) told PO Olatunji and PO Alves that his shoulder was dislocated and that he would like to be "double-cuffed." PO Olatunji told him he was "double-cuffed" already. Neither PO Alves, nor PO Olatunji, asked § 87(2)(b) if he wished to have medical treatment for his shoulder. The investigation showed PO Alves the BWC footage she captured described above. PO Alves told the investigation she could not hear what § 87(2)(b) said as she locked the cell door. The investigation showed PO Alves the BWC that PO Olatunji captured, which was described above. PO Alves told the investigation that she could hear § 87(2)(b) request medical attention twice. She told the investigation that she had no independent recollection of him requesting medical attention and that she did not think she heard him say it at the time. She told the investigation if she had heard it, she would have called an ambulance for him.

It is undisputed that § 87(2)(b) told PO Olatunji and PO Alves that his shoulder was dislocated and that he wanted to receive medical attention. PO Olatunji told the investigation that he did not hear this request initially, but that he later offered to have § 87(2)(b) leave with an ambulance. When § 87(2)(b) did not respond in either the affirmative or the negative to this

suggestion, he assumed § 87(2)(b) did not want an ambulance. PO Alves stated that she had no independent recollection of § 87(2)(b) asking for medical attention, and after viewing BWC footage of the request, she stated that she must not have heard him ask.

Per Patrol Guide Procedure 210-04 (BR 32), “when a prisoner in custody requires medical/psychiatric treatment: request an ambulance and remove prisoner to hospital directly from the place of arrest, if necessary. Accompany prisoner to hospital, make activity log entry, notify desk officer.”

§ 87(2)(g)

it is recommended that **Allegations C and D** be closed as **Substantiated**.

Allegation (E) Abuse of Authority: At the 47th Precinct stationhouse, Police Officer Olanrewaju Olatunji issued an unlawful summons to § 87(2)(b)

In PO Olatunji’s BWC (**BR 09-10**), at the 2:00 timestamp, after PO Olatunji has given § 87(2)(b) back his wallet, § 87(2)(b) says, “If I refuse to give you my license, where will we go from there?” PO Olatunji says, “Well then we have to put you in cuffs.” As PO Olatunji says this, § 87(2)(b) says, “I refuse. Alright, put me in cuffs.” He turns around and allows PO Olatunji to handcuff him without any resistance. PO Alves, Sgt. Cassesi, and PO Camacho’s BWC is generally consistent with PO Olatunji’s BWC (**BR 03-08**).

PO Olatunji issued C-Summons § 87(2)(b) for disorderly conduct (**BR 02**), in violation of penal code 240.20, to § 87(2)(b). In the “factual allegations” section of the summons, PO Olatunji wrote, “Officer gave defendant multiple order to provide identification, during a car stop, and he refused to provide one multiple times, stating, ‘I’m not providing it unless you tell me why I was pulled over.’”

Vehicle Report# § 87(2)(b) (**BR 29**), prepared by PO Olatunji, noted that § 87(2)(b) received a moving summons for disobeying pavement markers as well as a criminal court summons.

The Event Chronology for Job § 87(2)(b) (**BR 28**), noted that the job began as a traffic safety stop (75Z) at approximately 5:10am, and was closed at approximately 5:28am, as 92C, which meant, crime arrest.

Per NY CLS CPL § 240.20 (BR 33), “a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior; he makes unreasonable noise; or in a public place, he uses abusive or obscene language, or makes an obscene gesture; or without lawful authority, he disturbs any lawful assembly or meeting of persons; or he congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse; or he creates a hazardous or physically offensive condition by any action which serves no legitimate purpose.”

Per People v. Baker, 20 N.Y.3d 354 (2013) (BR 34), when determining whether a person is guilty of disorderly conduct, police officers are to consider the public harm element of the conduct by assessing the nature and character of the conduct, the time and place where the conduct occurred, the number of people in the vicinity, whether people in the vicinity were drawn to the disturbance, how many were drawn to the disturbance, and how those people reacted to the disturbance.

Although § 87(2)(b) was non-compliant with providing his identification to PO Olatunji, he did not participate in any behavior that caused the public any inconvenience, annoyance, or alarm, and never created any risk to the public or to the police officers at the scene.

§ 87(2)(g) it is recommended that **Allegation E** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 37**).
- PO Olatunji has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Alves has been a member-of-service for one year and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- On May 8, 2023, this case was sent to mediation and on May 24, 2023, the case was returned to investigation as the complaint was no longer suitable for mediation.
- On July 18, 2023, a Notice of Claim search request was submitted to the New York City Office of the Comptroller, the results of which will be added to this case file upon receipt (**BR 35**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 10

Investigator:	<u>Drew Murphy</u>	<u>Inv. Drew Murphy</u>	<u>08/22/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>08/24/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date